

Canadian critical race theory: racism and the law

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Chapter 1

Critical Race Theory

The Birth of A Theory

Legal Liberalism and the Critical Legal Studies Movement

In legal discourse, one of the most traditional and standard methods of analysis employed by legal scholars has been that of “Legal Liberalism,” with its emphases on the rule of law, formalism, neutrality, abstraction and individual rights. This method of analysis was traditionally thought to allow theorists to analyse legal concepts such as liberty, property, rights and so on in a liberal mode with emphasis on dispassionate discourse and linear logic, “with no connection to what these concepts may mean to real people’s lives” (O’Byrne 1991: 1). For a long time this abstract standard of jurisprudential discourse went virtually unchallenged, and it is still the main methodology used in legal discourse and in the law itself today (O’Byrne 1991: 1).

In 1977 in the United States, a group of radical legal scholars, who were generally left-leaning White male professors within the legal academy, began to attack the tenets of Legal Liberalism. These Critical Legal Studies (CLS) theorists severely criticized five basic and interrelated tenets of Legal Liberalism: the rule of law, formalism, neutrality, abstraction and individual rights. What follow are brief and generalized descriptions of Legal Liberalism and the Critical Legal Studies movement. This analysis provides a foundation for an analysis of the relationship between the Critical Legal Studies movement and the subsequent birth of Critical Race Theory (CRT).

The Rule of Law and the CLS Critique

The concept of the rule of law, which is the most basic underlying tenet of Legal Liberalism, suggests that governments should be bound by known principles or laws without distinction in their application to particular individuals or groups, or, as Andrew Altman describes this principle, “there is to be a single set of authoritative norms that apply equally to all citizens” (1990: 22). Critical Legal theorists have insisted, however, that

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the rhetoric of the rule of law is used by the more powerful to oppress the less powerful in society and to maintain the existing political, social and economic status quo (A. Altman 1990: 15).¹

Thus proponents of the Critical Legal Studies movement have challenged the liberal concept of the rule of law by contending that the rule of law is a “myth.”² The Critical Legal Studies movement challenged this basic tenet of liberal legal philosophy by contending that the rule of law is simply not possible in a situation where the kind of individual freedom endorsed by liberal philosophy reigns (A. Altman 1990: 13).

The rule of law, Andrew Altman argues, plays a central role in the theories of liberal thinkers because it is judged to be a necessary institutional mechanism for securing the prevailing values cherished by liberal tradition, which are individual liberty and those values connected with it, which he lists as tolerance, individuality, privacy and private property (1990: 10). Altman contends that a social situation where the kind of individual freedom endorsed by the liberal view prevails would be characterized by

a pluralism of fundamentally incompatible moral and political viewpoints.... The establishment of the rule of law under the conditions of pluralism would require some mode of legal reasoning that could be sharply distinguished from moral and political deliberation and choice. There would be a sharp distinction between law on the one hand and morals and politics on the other. Without such a distinction, judges and other individuals who wield public power could impose their views of the moral or political good on others under the cover of the rule of law.... [This] would destroy the rule of law and the liberal freedom it is meant to protect. Thus the liberal view requires that legal reasoning—that is, reasoning about what rights persons have under the law and why—be clearly distinguished from reasoning about political or ethical values. Legal reasoning is not to be confused with deciding which party to a case has the best moral or political argument (1990: 13–14).

Altman (1990: 14) goes on to say that the position of the proponents of the Critical Legal Studies movement, however, is that it is precisely this kind of legal reasoning that is impossible in a setting of moral and political pluralism (that is, with more than one set of political and moral values) and, as a result, the division between law and politics disintegrates, and legal reasoning becomes equivalent to deciding which party in the case has the best moral or political argument. Altman notes that one of the leading scholars in the CLS movement, Duncan Kennedy, makes this point

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more bluntly when he states:

Teachers teach nonsense when they persuade students that legal reasoning is distinct, *as a method for reaching correct results*, from ethical or political discourse in general.... There is never a “correct legal solution” that is other than the correct ethical or political solution to that legal problem (quoted in A. Altman 1990: 10).

Hence, the rule of law envisioned by the liberal theorist (that is, a form of legal analysis that is separate and distinct from political and moral analysis) does not and cannot exist, because it is impossible to separate moral and political choices in a pluralistic society. Critical Legal Studies theorists argue that it is thus all too easy for decision-makers—judges and others in power—to impose their own political and moral views on the rest of society.

Formalism, Neutrality, Abstraction and the CLS Critique

The doctrine of “formalism” (legal analysis) espoused by legal liberals is based upon the premise that legal rules “form a consistent and complete whole from which the answer to any legal question can be logically deduced simply by discovering the applicable rule and applying it to the facts of the case” (A. Altman 1990: 79). Liberal theorists argue that legal rules and the doctrine of *stare decisis* (judges following precedent and deciding like cases alike) can and do provide determinate legal results. Critical Legal Studies theorists, however, decry the existence of legal determinacy and argue simply that the law contains too many contradictions to be able to “produce” determinate results and that all law “is political and ... no amount of theorizing on its objective and neutral quality can alter its fundamental character” (O’Byrne 1991: 9). Commentators have noted that the CLS rejection of legal determinacy has merely embodied the critique of Legal Liberalism which predated it—that of the Legal Realism movement, which held that, because one could come to opposite conclusions through creative use of ambiguities of law and statutes in applying any legal rule or principle, legal rules were by nature indeterminate (Cook 1990: 988).

The concept of “neutrality” embodied in Legal Liberalism relies upon the contention that principles and laws are not based on any particular group’s conception of moral right or good. Andrew Altman notes that this concept of neutrality must depend upon “arrangements ... calculated to insure that no single group or fixed coalition can gain lasting control of the power of government” (1990: 76). Additionally, the legal liberalist’s concept of neutrality contends that once the appropriate political process

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has settled on some “normative” rule or principle, that is, some form of social consensus determined by those governed, then there must be, as Altman puts it, “neutrality in adjudication,” that is,

the rule is interpreted and applied by public officials in a way that is insulated from the influence of any fresh assessment of the contending normative views.... The political arena is the one in which the contending views are to be assessed and weighed, and some settlement is interpreted and applied without any new assessment or weighing of the contending normative views.... *Legal neutrality* is the form of neutrality that is embraced by liberals who insist upon a separation of law and politics (1990: 76).

However, the CLS theorist attacks the concept of neutrality by arguing that (1) the most dominant and powerful groups in society control the definition of the political concept of the good based on ideologies of domination and propertied interests, and (2) that legal neutrality is no less illusory, because most judges are from the dominant group in society and bring to the process of legal interpretation their own cultural and political biases.

The concept of “abstraction” embodied in the methodology of Legal Liberalism is based upon the proposition that law should operate at a high level of abstraction that excludes consideration of social context. Legal liberalists argue that

the liberal conception of the rule of law requires that public and private power be regulated by norms that are generalizable across situations and can be applied in a regularized, predictable manner. This again requires that certain aspects of a case be deliberately disregarded in the name of predictability... Where institutions cannot presuppose that all officials share the same set of background moral, religious, and political ideas, the authoritative norms that they lay down cannot regularly call for highly context-sensitive judgments without threatening the regularity, predictability, and perhaps even the stability of the system (A. Altman 1990: 192).

If the law did not operate at an abstract level, Altman argues, legal reasoning could not be clearly distinguished from unconstrained moral inquiry and political choice. CLS theorists, however, reject the notion that law can and should treat human beings as abstractions. Altman notes that Karl Klare, a leading Critical Legal Studies theorist, claims that one of the “enormous problems” with liberal theory is its “erroneous belief that it is possible to treat the individual as an abstraction, apart from the entire

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texture of his or her social life” (1990: 189).

The Critical Legal Studies theorist demands that “abstraction” be replaced by “contextualized law.” This reform, CLS theorists argue, is necessary because the Legal Liberalist insistence on abstraction “obscure[s] and falsely sanitize[s] human problems, [but considering] social context ... we can choose to tell different stories by meeting head on the social situation inherent in a given case” (O’Byrne 1991: 19).

Individual Rights and the CLS Critique

Finally, Legal Liberalism places great emphasis on individual rights. Richard F. Devlin, in an article which maps the progression of legal theory in Canada, notes that:

liberalism advocates that the state and law should strive to provide the citizen with as much space as possible to pursue her own self-interests (liberty); that each person should have the equal right to pursue such interests without formal restraints because of their identity, be it on the basis of their race, gender, class or ability ... [although] the key function of law is to play a facilitative role, that is, to provide mechanisms for social interaction (1991: 29).

The example Devlin uses to demonstrate the dual function of the law as a means to protect individual rights and referee social interaction is in the area of contract law. Contract law, he observes, has as its main function making free commerce easier so as to allow individuals to obtain wealth and to “therefore pursue their own conception of the good,” but he also points out that another purpose is to intervene and regulate the situation when the individual right to pursue the “good” conflicts with or infringes upon other individuals’ rights, whether it be an infringement of their rights to “liberty,” “equality” or some other recognizable right (Devlin 1991: 29).

Critical Legal Studies theorists make their strongest attacks on the liberal concept of individual rights and the notion that the function of law is to facilitate a “neutral” outcome. Liberal theory would have it that

the courts must enforce the boundaries articulated by the Constitution that define the spheres of privacy [individual rights] within which the collective cannot intrude.... This enforcement requires a delicate balancing between individual rights and duties. The apparatus of liberal rights mediates the relationship between ourselves and others. A liberal discourse of abstract rights and duties purports to map out the borders of these private spheres of au-

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tonomy and to set the conditions under which they may be justifiably disregarded (Cook 1990: 1006).

Critical Legal theorists argue that the problem with this concept of neutrality and dispassionate adjudication “is that those in power draw the line between public and private to preserve the distributions of wealth and power that limit transformative change and preserve hierarchies directly or indirectly benefiting them” (Cook 1990: 1007). Anthony E. Cook points out that, while the question for the legal realist was to ensure that judges and lawyers do not make decisions in a vacuum but make informed decisions with the aid of social science data, the focus of Critical Legal theorists has been on “the values and beliefs that provided the backdrop against which research was conducted and judicial choices were made” (1990: 989). In other words, according to Cook, CLS has

challenged the accepted values of classical liberalism by undermining the interpretations of private property, individual rights, equality of opportunity, meritocracy, and governmental power that sustain and reproduce oppressive hierarchies of wealth and power. Although liberalism purports to effect a neutral reconciliation between individual freedom and the collective restraints needed to preserve that freedom, CLS suggests that such neutrality is inherently illusory. Through structured argumentation based on manipulable legal categories, the legal system legitimates a status quo characterized by vast inequalities of wealth and power (1990: 989).

Consequently, the Critical Legal Studies movement rejects out of hand the doctrine of rights analysis because of its role in legitimating and maintaining the inequitable power imbalances in society. Here is how Richard Delgado sums up this aspect of the CLS critique of Legal Liberalism:

Rights, a special kind of rule, receive particularly harsh criticism from Critical Legal Scholars.... Rights legitimize society's unfair power arrangements, acting like pressure valves to allow only so much injustice. With much fanfare, the powerful periodically distribute rights as proof that the system is fair and just, and then quickly deny rights through narrow construction, nonenforcement, or delay. Rights, Crits [Critical Legal theorists] argue, are never promulgated in genuinely important areas such as economic justice. They protect only ephemeral things, like the right to speak or worship. When even these rights become threatening, they are limited (1987: 4).

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Deconstruction and the CLS Critique

Many Critical Legal Studies theorists deconstruct or “trash” the tenets of Legal Liberalism and legal rules and principles, denouncing both the use and usefulness of legal doctrine (especially rights doctrine) to effect meaningful social change. The vision held by the Critical Legal theorist is one of “Utopia,” where hierarchies do not exist, there are no class differences and there are no legal rules and principles governing the interaction between community members. In the CLS vision, the concept of individual rights is replaced by the concept of an “interdependent community.” Delgado explains it this way:

For CLS, rights reinforce a soulless, alienating vision of society made up of atomized individuals whose only concern is to protect their own security and property. Critics argue that rights are alienating since they force one to look at oneself and others as isolated rights-bearers (“I got my rights”) rather than as interdependent members of a community, and make it impossible for us even to imagine what a nonhierarchical society founded on cooperation and love would be like (1987: 4).

Critical Legal Studies is a complex and multifaceted theoretical movement. At the risk of oversimplification, it can be said, however, that the CLS movement came about because of the view held by many theorists that the discourse of Legal Liberalism maintains and legitimates the status quo and co-opts the oppressed into accepting it. Cook asserts that the Critical Legal Studies movement is seeking

to understand why people acquiesce in the social systems that oppress them.... CLS scholars purport to show that our social-political world, from which law is inseparable, is of our own making. Just as there is nothing determinate, necessary, or natural about the application of legal rules, the way we live and relate to others is also a matter of choice (1990: 990).

American and Canadian Black scholars and other scholars of colour were attracted to the Critical Legal Studies movement because it challenged the objectivity of laws that have oppressed people of colour. While scholars of colour applauded the CLS movement’s skepticism about the idea that law can produce determinate results free from reference to values, politics or historical conditions, they also believed that the Critical Legal Studies movement ignored the realities of people of colour. As Kimberlé Crenshaw argues:

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The Critics' [Critical Legal Studies theorists'] principal error is that their version of domination by consent does not present a realistic picture of racial domination. Coercion explains much more about racial domination than does ideologically induced consent. Black people do not create their own oppressive worlds moment to moment but rather are coerced into living in worlds created and maintained by others. Moreover, the ideological source of this coercion is not liberal legal consciousness, but racism (1988: 1356–57).

Scholars of colour were also attracted to CLS because of its messages that legal concepts are “manipulable” and that the law serves to legitimate existing “maldistributions” of wealth and power, but they criticized it for its lack of analysis of the role racism plays and for its inability to go beyond “trashing” to the crucial next stage of “reconstruction” (Matsuda 1987: 341). As a result of these and other criticisms, many scholars of colour rejected the Critical Legal Studies movement and began their own movement known as Critical Race Theory.

The Critical Race Theory Movement

Thirty legal scholars of colour attended the tenth National Critical Legal Studies Conference held on January 7, 1986, in Los Angeles, and six presented papers on the topic of racism and the law.

It was clear that many legal scholars of colour felt alienated from existing legal discourse (Matsuda 1996: 49). This alienation is not surprising, given the fact that people of colour, particularly Black people, have been historically excluded from the legal academy. In the United States, law schools began implementing affirmative action admissions policies in the mid-1960s, but the record of American law schools in hiring and promoting Black scholars has been dismal. In 1983, for example, only two persons of colour were full-time faculty members at Harvard Law School, out of sixty-four (Kennedy 1990: 1757).

As noted by Kennedy, “one must remember that the litigation struggle against de jure [sanctioned by law] segregation was primarily a struggle against segregation in *education*, and that prior to *Brown v. Board of Education [of Topeka]*, 1954, 347 U.S. 483], the desegregation of state law schools was a major locus of controversy” (1990: 1753). In 1975, students of colour at American law schools, particularly at U.C. Berkeley’s Boalt Hall School of Law, formed the Coalition for Diversified Faculty. This coalition filed a lawsuit alleging discriminatory hiring practices, and its members boycotted classes and held rallies and sit-ins to protest not only discriminatory hiring practices but the discriminatory denial of tenure to faculty of colour. In 1990 at Yale Law School, students boycotted classes

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and called for a national protest and nationwide strike of students against segregated law faculties. Because of the current debate in the United States on affirmative admissions policies, the passage of Resolution SP1 by the Regents of the University of California in 1995 and of Bill 209 in 1996 (which together restrict the ability of all public universities in California to practice race and gender based affirmative action), students of colour at U.C. Berkeley's Boalt Hall School of Law began a National Faculty and Student Diversity Coalition which engages in legal and extralegal activities to improve the diversity of both faculty and students in law schools across the United States. Sit-ins, rallies and guerrilla actions were reported at Boalt, Stanford, Harvard and Columbia (Matsuda 1996: 59).

This student activism encouraged faculty of colour to articulate the role race plays in law. Critical Race Theory originated among the Black and other scholars of colour who attended the tenth National Critical Legal Studies Conference in 1986 in Los Angeles. These scholars of colour not only felt alienated from existing legal discourse but felt that existing legal discourse (including Critical Legal Studies discourse) was alienating to all people of colour. What, asked the founders of the Critical Race Theory movement "does Critical Legal Studies have to offer racial minorities in their quest for social justice?" (Delgado 1987: 1). The search for an answer to this question led to a theoretical movement based on the oppression of people of colour which is unprecedented in jurisprudential discourse. Richard Delgado, one of the founders of the Critical Race Theory movement, who attended the 1986 conference, explained the failure of CLS discourse in this way:

Although CLS purports to be a radical theory, minorities have not flocked to it. And CLS has not paid much attention to minorities, not placing racial questions on its agenda until this year, ten years after its formation as a legal movement.... The CLS negative program contains elements that repel and in fact threaten minorities. These elements include: (i) disparagement of legal rules and rights, (ii) rejection of piecemeal change, (iii) idealism, and (iv) use of the concept of false consciousness (1987: 3).

As mentioned, American and Canadian Black scholars and other scholars of colour had been attracted to the Critical Legal Studies movement because it challenged the objectivity of laws that oppressed people of colour. Scholars of colour had also applauded that movement's skepticism that law can produce determinate results free from reference to values, politics or historical conditions. However, scholars of colour believed that the CLS movement ignored the realities of people of colour because it "portrayed those who use legal doctrine, legal principles, and liberal

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theory for positive social ends as either co-opted fools or cynical instrumentalists” (Matsuda 1987: 341).

Critical Race Theorists’ Critique of the Critical Legal Studies Movement

One of the major weaknesses of the Critical Legal Studies movement for people of colour was its failure to recognize that the minority experience of “dual consciousness” was capable of accommodating “both the idea of legal indeterminacy as well as the core belief in a liberating law that transcends indeterminacy” (Matsuda 1987: 333). This failure was problematic for scholars of colour because, as Matsuda notes:

The dissonance of combining deep criticism of law with an aspirational vision of law is part of the experience of people of colour ... these people have used duality as a strength, and have developed strategies for resolving this dissonance through the process of appropriation and transformation.... The law, as critical scholars recognize, consists of language, ideals, signs, and structures that have material and moral consequences. Transforming this kind of system into one’s own has a long tradition in the Black community (1987: 333).

Although scholars of colour were attracted to the CLS movement because of its messages that legal concepts are “manipulable” and that law serves to legitimate “maldistributions” of wealth and power, they criticized its inability to go beyond “deconstruction” (or “trashing”) into the next vital stage of “reconstruction.” Delgado argues that the CLS movement is unrealistically idealistic:

Crits [Critical Legal theorists] argue that the principal impediments to achieving an ideal society are intellectual. People are imprisoned by a destructive system of mental categories that blocks any vision of a better world. Liberal-capitalist ideology so shackles individuals that they willingly accept a truncated existence and believe it to be the best available. Changing the world requires primarily that we begin to think about it differently. To help break the mental chains and clear the way for the creation of a new and better world, Crits practice “trashing”—a process by which law and social structures are shown to be contingent, inconsistent and irrationally supportive of the status quo without good reason (1987: 9).

Critical Race theorists like Delgado ask us to imagine what the lot of minorities would be if the CLS “trashing” succeeded and all laws were

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repealed. Delgado doubts that the lot of minorities would improve because the forces that hold back people of colour “are not largely mental, legal, nor even political. What holds us back is, simply, racism—the myriad of insults, threats, indifference, and other ‘micro aggressions’ to which we are continually exposed” (1987: 10).

Critical Race theorists also argue that the Critical Legal Studies movement poorly serves the needs of people of colour because the “Utopian” society it envisions would see decision-making “decentralized.” Rules would be set by community members and would be open to constant renegotiation (Delgado 1987: 14). Because Blacks and other people of colour have not been recognized as equals, it is unlikely that they could “merge” into this community of negotiation to confront problems. In other words, as Delgado (1987: 313) points out, there is no guarantee under the CLS vision of “Utopia” that racism would not resurface within the community.

Critical Race theorists criticize the Critical Legal Studies movement for not examining the role of racism in law and society and for not articulating a vision of how it can be eliminated. Delgado argues that

if racism were to surface in a CLS-style Utopia, there would be no rules, rights, federal statutes, or even courts to counteract it.... The costs of moving to a utopian society would be borne by minorities, since dismantling of formal structures would initially lead to an increase in racist behaviour.... Utopian society would empower whites, giving them satisfaction currently denied, and disempower minorities, making life even less secure than it is today.... If we jettison rules and structures, we risk losing the gains we have made in combatting racism.... The CLS program exposes minorities to an increased risk of prejudicial treatment (1987: 16–17).

With respect to the CLS critique of rights discourse, Critical Race theorists note that people of colour see rights differently. While CLS theorists generally categorize rights as oppressive, alienating and mystifying,

for minorities, they are invigorating cloaks of safety that unite us in a common bond. Instead of coming to grips with the different function of rights for the two groups, Crits insist that minorities adopt their viewpoint, labelling disagreement on our part false consciousness or a lack of political sophistication (Delgado 1987: 7).

The difference here results from the CLS call to abandon rights discourse

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altogether because it merely legitimates and maintains inequitable power imbalances in society; Critical Race theorists acknowledge that legal discourse and, in particular, rights discourse are indeterminate but suggest that they are nevertheless essential in the struggle for racial equality (Brooks and Newborn 1994: 2).

Critical Race Theory was designed to confront subtle forms of discrimination perpetuated by law and to challenge and expand rights analysis. Delgado points out that

Critical Race Theory sprang up with the realization that the civil rights movement of the 1960s had stalled and needed new approaches to deal with the complex relationship[s] among race, racism, and American law. Derrick Bell and others began writing about liberalism's defects and the way our system of civil rights statutes and case law reinforces white-over-black domination (1993: 744).

Instead of “trashing,” CRT has offered solutions from its inception. It has also challenged the ability of conventional legal strategies to deliver justice, while recognizing that law can and must be used in the battle against racism.

The Basic Tenets of Critical Race Theory

This book focuses on the Black/White paradigm of Critical Race Theory, first, because I am a Black Critical Race theorist and, secondly, because a devastating anti-Black racism exists in Canada. The growing body of Critical Race Theory developed by Aboriginal people and non-Black peoples of colour unfortunately cannot be adequately addressed in this single volume. For example, the strong relationship between Critical Race Theory and the growing body of “Critical Aboriginal Theory” has led to the development of an impressive array of litigation and scholarly literature. As a Black Canadian Critical Race theorist, I recognize that a Black/White paradigm does not deal with the concerns of all peoples of colour and Aboriginal peoples. There are commonalities, however, to which this book speaks. Critical Race Theory and its methods provide a medium to express divergent experiences, to search for and bring out the meaning of “race” and racism in the law and to provide a critical understanding of law.³

At the heart of Critical Race Theory is the thesis that legal discourse has not appropriately taken account of the social reality of race and racism and has ignored the fact that law “is both a product and a promoter of racism” (Matsuda 1996: 22). Racism is a distinct phenomenon that has permeated the legal and nonlegal history of American and Canadian

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society. Most Critical Race theorists are critical of both Legal Liberalism's and the Critical Legal Studies movement's refusals and/or hesitations to recognize the unique historical relationship between law and racism (Cook 1990: 986). Law, Critical Race theorists argue, "is born of racism and gives birth to racism. Law thus becomes a locus of struggle. Struggle can change law, and law can aid struggle" (Matsuda 1996: 52).

Thus, most proponents of Critical Race Theory embrace the concept of "historical race" (the history of a particular group's racialization in a given society) which allows Blacks and other scholars of colour to examine legal issues through the prism of historical racism, based upon the recognition that race-based subordination was legitimated by law in the past. As Alex Johnson notes, "Historical-race focuses on how the racial group's history affects current issues" (1994: 838). Kushnick (1998) has written that, "Blacks have struggled since the days of slavery, from their resistance on the slave ships that brought them to the Americas, to the slave uprisings and individual slave resistance, to their resistance to the reestablishment of the plantation economy, through to the system of *de jure* or legal segregation known as Jim Crow which existed in both the United States [and Canada]."⁴

Kushnick notes that Black people were struggling against segregation prior to the emergence of the Civil Rights Movement in the 1950s and 1960s:

The struggle escalated in the 1950s, particularly after the *Brown* decision. The *Brown v. Board of Topeka* decision of 1954 overturned the 1896 *Plessy v. Ferguson* decision [163 U.S. 537] which had declared "separate but equal" to be constitutional and held that *de jure* [Jim Crow] segregation was unconstitutional. *Brown II* [*Brown v. Board of Education of Topeka*, 1955, 349 U.S. 294] was the 1955 enforcement decision which ordered implementation of the 1954 decision on the basis of "all deliberate speed." What should have been the crowning glory of the NAACP's ... strategy of litigation and lobbying, in practice, turned out to be the beginning of a new phase of black struggle (1998: 65).

Critical Race theorists bemoan the fact that while the Civil Rights Movement may have produced real and substantial results, they were not longlasting. In the U.S., reversal of many of the legal reforms instigated by the Civil Rights Movement is continuing. Kushnick notes:

This repeal of what may be termed the Second Reconstruction is proceeding in much the same manner as the reversal, a hundred years ago, of the First Reconstruction reforms that followed the

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American Civil War. In both cases, the executive and judicial branches of the federal government worked together in an increasingly racist, popular and intellectual culture to turn the clock back (1998: 142).

Critical Race theorists such as Mari Matsuda, Richard Delgado, Derrick Bell and others emphasize that Blacks need to re-examine total reliance on rights remedies which

do little more than bring about the cessation of one form of discriminatory conduct that soon appeared in a more subtle though no less discriminatory form.... Civil rights advocates must replace it [racial equality ideology] with an approach that recognizes the real role of racism in our society and seeks to deflect and frustrate its many manifestations (Bell 1992a: 1.17).

The civil rights activists of the 1950s and '60s employed a strategy of seeking formal, legal equality through litigation and legislation. Their strategies produced varied and sometimes limited victories in areas such as desegregation in education, housing, public accommodations, employment, voting rights and the administration of justice. The goal of American anti-discrimination law has been one of "formal equality," which entitles everyone to participate in what Allen Freeman terms the "game of equal opportunity" (1988: 350). All Americans, regardless of race, are to have equal legal status. The goal, according to Brooks and Newborn, is for American society to become "racially symmetrical," that is, to become a society where the law treats all groups, including historically excluded groups, in the same manner without reference to race and prefers "racial integration over racial separation; hence, formal equal opportunity incorporates two policies: colorblindness and racial mixing" (1994: 796). Colour-blindness forbids governments, courts and society from taking race into account and forbids race-based decisions. However, as Critical Race theorists and others have pointed out, "In order to get beyond racism, we must first take account of race. There is no other way" (Lopez 1996: 176). Lopez also points out that:

Color-blind constitutionalism has been widely criticized.... In order to get beyond racial beliefs, we must first be race-conscious. This is the basic flaw of color-blindness as a method of racial remediation. Race will not be eliminated through the simple expedient of refusing to talk about it. Race permeates our society on both ideological and material levels (1996: 176–77).

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The major concern regarding colour-blindness that Critical Race theorists have identified is that, because it is forbidden to talk about race, the United States Supreme Court has been able to strike down government actions that have been aimed at ameliorating the conditions of groups or individuals who have been disadvantaged because of race (affirmative action), because these laws refer explicitly to race, and the colour-blind doctrine does not permit this. This doctrine has also allowed the U.S. Supreme Court to uphold state action that has a clearly racist intent or effect because such action is couched in race-free language and because proof of “intent” to discriminate is required under American civil-rights law. The discriminatory effects of government action are not deemed to constitute discrimination under the U.S. Fourteenth Amendment. For example, Lopez notes that:

In *Presley v. Etowah County Commission* (1992) [502 U.S. 491], ... the Court found no Voting Rights Act violation where White commissioners in two Alabama counties greatly diminished the decision-making authority of each individual county commissioner immediately after the election of the first Black, because they did so without ever directly mentioning race. In one county, the commissioners shifted the newly integrated commission's duties to an appointed administrator. In the other, the power of the individual commissioners was transferred to the commission as a whole voting by majority rule. As in these counties, White power is easily and now perhaps principally maintained without any overt reference to race. And as in these cases, color-blindness renders such power maintenance unassailable. Rejecting all talk of race would produce comparable effects across society. Under race-blindness, the language necessary to remake racial ideology could not be used, since such language would necessarily refer to race. Meanwhile, race-blindness would not challenge the continuation, extension, and innovation of new patterns of discrimination, so long as these patterns did not explicitly make distinctions on racially impermissible bases (1996: 179).

Critical Race theorists are concerned that the Civil Rights Movement has become stagnant and that many of its gains have been reversed by the doctrine of colour-blindness and the requirement that intent be proved under the Fourteenth Amendment. A person who alleges a state or federal law is discriminatory must prove the existence of a discriminatory animus behind the law before it can be struck down as unconstitutional. Proof of intent must be made even if the effect of the law is clearly to exclude Blacks. If the person is unable to prove that the law was passed with a

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discriminatory intent to exclude Blacks, the law will not be struck down as being racially exclusionary simply because it has a discriminatory effect. Because such a law is “neutral” on its face and does not refer explicitly to a racial classification, it will be held to be nondiscriminatory (Brooks and Newborn 1994: 804).

The “New Approach” of Critical Race Theory

Although many Critical Race theorists recognize the need to challenge and expand existing rights analysis and find a new approach that goes beyond the strategies employed by the Civil Rights Movement, they also embrace the pragmatic use of law as “a tool for social change and the aspirational core of law as the human dream of peaceable existence” (Matsuda 1996: 22). Therefore, Critical Race Theory, unlike Critical Legal Studies, consists of “criticism tempered by an underlying descriptive message of the possibility of human social progress” (Matsuda 1996: 22).

In brief, the dominant themes of Critical Race Theory are:

1. the need to move beyond existing rights analysis,
2. an acknowledgement and analysis of the centrality of racism, not just the White supremacy form of racism but also the systemic and subtle forms that have the effect of subordinating people of colour,
3. a total rejection of the “colour-blind” approach to law, which ignores the fact that Blacks and Whites have not been and are not similarly situated with regard to legal doctrines, rules, principles and practices,
4. a contextual analysis which positions the experiences of oppressed peoples at its centre,
5. a deconstruction which asks the question, How does this legal doctrine, rule, principle, policy or practice subordinate the interests of Black people and other people of colour? and, ultimately,
6. a reconstruction which understands the “duality” of law, recognizing both its contribution to the subordination of Blacks and other people of colour and its transformative power.

Critical Race Theory is also committed to exploring alternatives to discriminatory law and to offering solutions that go beyond “symmetrical” equality and include “asymmetrical” equality, or affirmative action, to ameliorate conditions of disadvantage.⁵

Critical Race methodology requires a deconstruction of legal rules, principles and policies and it challenges the so-called “neutrality” and “objectivity” of laws that oppress Blacks and other people of colour.

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Deconstruction is designed to confront subtle forms of discrimination perpetuated by law. Critical Race Theory attempts to expose the ordinariness of racism and to validate the experiences of people of colour, which are important bases for understanding laws that perpetuate their disenfranchisement (Matsuda 1987: 346–47). Matsuda et al. note that, “as critical race theorists we adopt a stance that presumes that racism has contributed to all contemporary manifestations of group advantage and disadvantage along racial lines” (1993: 73). The questions asked by Critical Race theorists are: Does the legal doctrine, legal rule, principle or practice at issue subordinate and discriminate against people of colour? Are “race” and racism an issue? If the answers are yes, should the issue be litigated or should some other strategy be employed?

Critical Race Theory also employs “narrative,” or storytelling. Narrative functions in a number of ways. It can allow lawyers and others to “tell the story” of their clients and the Black experience of racism and subordination in a non-ahistorical way. Narrative can debunk the myths of neutrality and objectivity by placing emphasis upon the confrontational nature of an encounter—between a Black youth and a White police officer who represents the state, for example—in its social and historical context of racial discrimination. Thus, narrative allows the lawyers representing, for example, a Black youth charged with assault of a police officer, or a Black youth who is the victim of excessive use of police force, to “tell the story” of the racial antagonism between the police and the Black community at that location in Canada at the time of the encounter. Narrative can also be a way to understand and interpret judicial opinions in order to deconstruct the “racial” and other ideologies that may underlie them.

The final stage in Critical Race methodology is reconstruction. What are the alternatives (if any) to the existing doctrine, legal rule, principle or practice that will advance the cause of Black people? What harm or benefit to the Black client and/or community might result from the adoption or nonadoption by the courts or the legislature of these changes?

Critical Race Feminism

American Black feminists and other feminists of colour have also started a new legal genre known as “Critical Race Feminism” because mainstream feminism has overlooked the fact that White supremacy and dominance affects women of colour. Critical Race Feminism has been described as “a movement which is not yet fully organized or distinct, but part of the evolving tradition that originated with Critical Legal Studies, culminating in the Critical Race Theory genre” (Cleaver 1997: 35).

There is no universal feminist theory, but rather there are a number of theories. All mainstream feminist theories, however, have gender oppression at their core. “Feminist legal scholars challenged law’s deeply in-

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scribed patriarchy, showed that gender and sex roles are constructed, not natural, and named and condemned such practices as sexual harassment in the workplace, spousal abuse, and violent pornography” (Delgado 1993: 744).

Black feminist scholars have attempted to point out the shortcomings of mainstream feminist theories in addressing the oppression of both race and gender when these issues intersect. Gender discrimination, say Critical Race feminists, is only one of the barriers to full participation that women of colour face. Black women, like Black men, are also oppressed by racism and classism. During the Civil Rights Movement and at other times, Black women have fought for Black liberation. As Kathleen Cleaver observed, “We could see how these conflicts arising from sexism within our community were subordinate to the overwhelming violence of the domination imposed on our community by the armed representatives of the state” (1997: 35). Though there is no doubt that Black women are further oppressed by sexism, as Cleaver notes:

Eliminating gender discrimination in itself does not remove the contortion blighting the lives of women whose colour, race, national origin, or economic marginalization causes them such pain. ... Until White feminists discover how to see the insidious way that racism constricts the lives of millions of women, they cannot oppose it. Worse, they may blindly fail to perceive how their ancestry positions them to benefit passively from racism’s perpetuation, and remain oblivious to the racialized nature of gender (1997: 39).

Critical Race Feminism argues that mainstream feminist theory has failed to deal with Black women’s realities of racism, sexism and classism, or with White women’s own part in this oppression.⁶ An examination of mainstream feminist theory and, in particular, contemporary feminist legal scholarship clearly shows that this failure has manifested in the almost complete absence of analyses which go beyond gender and patriarchy to consider the impacts of racism, sexism and classism on women of colour.

Liberal feminist theory has been able to see analogies between racism and sexism but, according to Critical Race feminists, has been unable to develop a framework that encompasses both (Herbert 1989–90: 271). Socialist feminist theory focuses on the issue of class and gender without focusing on the “racism of class.” Louis Kushnick (1998) argues, for example, that because institutional racism determines resource allocation (of goods and services) and opportunities (including education, employment and the like), Whites get privileged access. This kind of inequality,

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he argues, maintains the class system by

inculcating and reinforcing a race consciousness rather than a class consciousness among the white working class.... One has only to look at the history of “race riots”—pogroms—against people of colour in times of economic and political crisis, for example, the race riots ... and the current escalation of racial violence among unemployed and alienated whites” (1998: 47).

Socialist feminism, while articulating the effects of class on White women, fails to examine the intersection of race and class on women and men of colour. The ruling class, as Kushnick notes, expends a great deal of effort to separate race from class, both intellectually and politically, and he notes that White working-class racism incorporates and maintains the racist ideology of the ruling class (1998: 46). And radical feminism, which has as its primary focus the concept of patriarchy and which emphasizes gender relations, or sexual oppression, as the most crucial form of oppression, has denied the commonality of oppression that Black women have with Black men. In contrast, Angela Harris (1994) has examined the issue of rape in order to demonstrate the commonality of oppression between Black women and Black men. She demonstrates that mainstream feminists such as Katherine McKinnon have failed to explore what rape means to Black women and men. Harris shows that, for Black women, rape is a more complex phenomenon and an “experience as deeply rooted in colour as in gender” (1994: 15). She points out that, as a legal matter, rape did not even exist for Black women during slavery, because at that time the rape of a Black woman by any man, White or Black, was not a crime. This lack of legal protection for Black women against the crime of rape continued, as rape laws were seldom invoked to protect Black women because these women were considered to be “promiscuous” by nature (Harris 1994: 16).

Harris notes that for Black males and females, “rape signified the terrorism of Black men by White men, aided and abetted, passively (by silence) or actively (by ‘crying rape’), by White women” (1994: 16). Harris also argues that this aspect of rape is not purely historical but has a contemporary basis. She cites reports by Susan Estrich and others which show that, between 1930 and 1967, 89 percent of the men executed for rape in the United States were Blacks. A 1968 study of rape sentencing in one state showed that, in all of the fifty-five cases where the death penalty had been imposed on Black men, the victims had been White, while 47 percent of all Black men convicted of assaults on Black women had been released on probation.

Similarly, Paul Kivel notes that

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at times, White women's groups have supported attacks against the African-American community in the name of [White] women's safety. In the late nineteenth century the National American Woman's Suffrage Association refused to take a stand against lynching and mob violence.... It did not support the organizing of chapters of Black women because it did not want to jeopardize White southern support for White women's right to vote," and it argued that if White women could vote, it would buttress the supremacy of the White race against the demands of Black people (1996: 62).

Kivel states that the "disproportionate criminalization and punishment of Black men for violence against White women continues today" (1996: 62). There are many examples in contemporary mainstream feminist legal scholarship where the writers have ignored the issues of race in their analysis of criminal and other areas of law. If "race" or "racism" are discussed at all, it is done in passing, with no real analysis of the differences in how the law impacts on women of colour and White women. These differences are particularly acute in the procedural area of sentencing and are demonstrated by the disproportionate representation of Black women and other women of colour in the criminal justice system.

Summary

Critical Race Theory originated with Black and other scholars of colour who attended and presented critical papers at the tenth National Critical Legal Studies Conference held in Los Angeles in 1986. It also originated as a response to the continuing activism of students of colour in American law schools against the discriminatory hiring and promotion practices of these White-dominated institutions. This student activism encouraged faculty of colour to articulate the role that race and racism play in law.

The failure of both Legal Liberalism and the Critical Legal Studies (CLS) movement to place racial questions on the legal agenda left scholars of colour skeptical of the state of existing legal discourse. Although theorists of colour were attracted to the CLS movement because it challenged liberal concepts of the "neutrality" and "objectivity" of law and because it recognized the fact that law legitimates existing "maldistributions" of wealth and power, in the end Critical Race theorists rejected it because of its refusal or inability to recognize the central role that race and racism play in law and because of its failure to give credit to the experiences of people of colour. Critical Race theorists disagreed with the CLS view of rights discourse and with its rejection of law as a tool against oppression and subordination. Critical Race theorists also criticized the CLS movement's inability to go beyond "trashing" to the next stage of reconstruction.

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Critical Race Theory considers what the lot of minorities would be if the CLS “trashing” succeeded and all laws were repealed, and on this basis it rejects the CLS vision. Critical Race Theory argues that although rights discourse is indeterminate, it is still essential to the struggle for racial equality. Law now contributes to racial injustice but must also be used in the battle against it. The Civil Rights Movement that began in the 1960s has stalled and civil rights gains are being systematically diminished. Critical Race Theory therefore calls for new approaches to deal with the complex relationships among race, racism and law. Deconstruction and reconstruction go hand in hand in the struggle for racial equality. Colour-blindness and ignorance of the central role of racism in society are rejected by Critical Race theorists, for whom race-consciousness is an overriding theme, and new solutions to old problems call for a redistributive approach to law. Critical Race scholars have “also challenged law’s dominant mode of detached impartiality, offering in its place scholarship that is more contextualized and based on Narrative and experience” (Johnson 1994: 819).

The work of American Critical Race scholars was to have a significant impact on the birth of a Critical Race Theory movement in Canada.

An International Movement

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“Many ethnic and racial groups in Canada have been victims of direct and explicit discrimination in the past. Today, discrimination persists in forms more difficult to discern such as stereotypes, assumptions and singular viewpoints. It manifests itself as systems, practices, policies and laws that appear neutral, but that, under close inspection, have serious detrimental consequences for members of ethnic and racial communities.”

—Peter Rosenthal (1989–90)

The growth of Critical Race Theory began in Canada during the 1980s. Following along the same theoretical lines as American Critical Race theorists, scholars of colour in Canada began to articulate their dissatisfaction with Canadian legal discourse which, like its American counterpart, had failed to include an analysis of the roles that race and racism have played in the political and legal structures of society. Like American theorists of colour, Canadian Critical Race theorists knew that issues of

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race permeated the legal landscape. In one respect, however, Canada's history of racism presented more serious problems than that of the United States. In the United States, most observers would acknowledge that racism exists; the controversy is over the role that law plays in its maintenance and perpetuation. In Canada, it is hard even to reach this issue because of pervasive denial of the very existence of racism in Canadian society.

It has been said that the image Canadians wish to portray to the world is one of racial and cultural tolerance, of Canada as a mecca for the oppressed of the world. If racism is a problem at all in Canada, these image-makers insist, it is an "aberration," merely the action of a few misguided individuals that should not reflect on Canadian society as a whole. Some White Canadians point to the "welcome" given to fugitive slaves from the United States who came north through the Underground Railroad, and to the fact that in 1985 Canada was the first nation to implement a *Multiculturalism Act*.

However, a dichotomy exists between Canada's public and international image as an "egalitarian" society free from the racism that plagues the United States and the actual racial reality in this country. James Walker, for example, reveals the discrepancy between Canada's "national dream" and its reality of racial inequality and notes that "left as undisturbed illusion, the dream can perpetuate inequality by denying the very existence of racial disadvantage" (1997: 344). In Canada, as Constance Backhouse noted after canvassing historical jurisprudence, there are many examples of "judicial support" for racial segregation such as *Loew's Montreal Theatres Ltd. v. Reynolds* (1919, 30 Que. B.R. 459), *Franklin v. Evans* (1924, 55 O.L.R. 349 [H.C.]), and *Rogers v. Clarence Hotel* (1940, 55 B.C.R. 214 [C.A.]). Similarly, Walker, in his book "*Race, Rights and the Law in the Supreme Court of Canada*," notes that in virtually every area in which "Jim Crow" existed in the United States, such as churches, housing, jobs, restaurants, public transportation, sports and recreation, hospitals, orphanages, prisons, asylums, funeral homes, morgues and cemeteries, "African Canadians experienced exclusion and separation from mainstream institutions, amounting to a Canadian version of 'Jim Crow'" (1997: 125).

In 1995, for the first time in Canadian legal history, a text, entitled "*Racial Discrimination*": *Law and Practice* (and published by Carswell with research funding assistance provided by Justice Canada), focused on discriminatory practices in the Canadian system, "as manifested in federal and provincial law and policy" (Mendes 1995: 1-1). The text adequately covers the "present-day forms of discrimination and the legal mechanisms available to change these discriminatory patterns" (Mendes 1995: iii). The publication of this text is an initial response to concerns which have been

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raised by Canadian Critical Race theorists. However, it is just a beginning, and the authors of the text explain that various important domains could not adequately be covered, including “issues specifically affecting Canada’s First Nations peoples, such as the right to self-governance, [and] the experiences of black and other ethnic communities with Canadian courts and the criminal justice system in general (Mendes 1995: iii).”

The text provides an analysis of race relations in Canada that does not deny or attempt to erase the historical reality of racism in this country. It equips us with an historical account of the institution of slavery in Canada, which was the “first institution whose very existence was governed by a distinction based on race” (Mendes 1995: 1-3). Beginning with the pre-Confederation period, the authors proceed through Confederation to the post-World War II period. The text informs us that both Blacks and First Nations people were enslaved in New France, which practised slavery under “provisional approval” until 1709 when it received full approval by France. Thus, the first Black slave to arrive in Canada directly from Africa (for whom there is an adequate record) was Oliver Le Jeune, in 1628, but as Winks points out, slavery had been present in Canada at least since 1607 (Winks 1971: 1-23). Under British rule, slavery began to flourish. The Mendes text on racial discrimination notes that, “under French governance, slaves had been purchased in small numbers and thus no large-scale slave market had developed in Canada as it had in the United States. In contrast, under British control, the number of slaves increased and slavery became more exclusively imposed on black individuals” (Mendes 1995: 1.II.B.). During this period, the largest contingent of Black slaves arrived in Canada during the American War of Independence in 1775, when United Empire Loyalists were encouraged to migrate to Canada and the British granted them permission to bring their slaves along. Following the war, more White Loyalist emigrants brought their slaves with them. Free Blacks were also encouraged, by promises of land grants, to join the British forces and ultimately to migrate to Canada. Most of these Black Loyalists settled in Nova Scotia. However, the land grants they were promised were either never received or were of such poor quality as to be incapable of providing subsistence to the Black settlers. Consequently, the Mendes text informs us that

the legacy of slavery in Canada consigned the black migrants to a labouring and service role at the lowest level and for the lowest wages.... They were also resented and attacked by these same white workers, who perceived the black workers as having taken their employment opportunities. Black citizens were similarly segregated or excluded from churches and schools. Many of the stereotypes later applied to black persons developed from this

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early marginalization (1995: 1.II.B.)

Hence, Canada's free Black population dated back to the American Revolution, and by the "first decade of the 19th century, approximately 3,000 people of African origin were held as slaves in what is now Canada, their status duly noted in the legal documents of the times." Historians note that in 1808 the Nova Scotia Assembly was debating a Bill for "regulating Negro Servitude" (Walker 1997: 124).

Other major migrations of Blacks into Canada occurred during the War of 1812, when about two thousand Black fugitives from slavery in the United States arrived in Nova Scotia in 1813 and increasingly more Black fugitives settled in what was then Upper Canada. "In 1832, there were approximately 300 blacks living in Amherstburg and several hundred living in London. By approximately 1850, the numbers had increased to 800 and 500, respectively" (Mendes 1995: 1.III). After the United States enacted the *Fugitive Slave Act* in 1850, thousands of fugitive slaves fled to Canada. It is estimated that by 1860 the number of Blacks in Upper Canada had increased to approximately 40,000 (Mendes 1995: 1.III).

The institution of slavery lasted in Canada for close to two hundred years.⁷ It was not as economically viable in Canada as it was in the United States, however, and slavery was abolished throughout the British Empire in 1833. But the abolition of slavery did not end discrimination and anti-Black racism in Canada. "Whether in Canada or in the United States, most black citizens would continue to face various forms of discrimination" (Mendes 1995: 1.II). After Confederation the legacy of slavery continued to impact on Black Canadians, and the constitution of the new Canada enacted in 1867 did not protect Blacks or other racial minority groups against discrimination. James Walker, in his historical account of the Canadian legal systems' treatment of racism, and others who have studied the problem of racism in Canada have documented the "substantial extent of racial segregation in Canada" which was rampant particularly in education and employment (1997: 124). Walker notes with respect to education:

The most significant area of separation, at least in legislative terms, was in education. In Nova Scotia the *Education Act* of 1836 permitted local commissioners to establish separate schools for "Blacks or people of colour." ... Ontario's *Common School Act* of 1850 allowed 12 or more heads of families to request a separate black school ... in practice 12 white family heads could request separate schools for black children. Under this legislation segregated education was imposed in most Ontario districts with a sizeable African-Canadian population (1997: 128).

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Nor was school segregation confined to the 1800s. Segregation provisions remained on the books until the mid-1960s and de facto forms of segregation still exist to some extent today. Walker also notes that employment discrimination was widespread, “encompassing the civil service as well as the private sector,” and public transportation and accommodation were also segregated (1997: 128).

Walker also puts Canadian racism in its contemporary context. He notes that surveys of racism in Canada in the 1980s and 1990s indicate that there are

objective data illustrating the survival of “race” as a meaningful factor in Canadian life.... Racial antagonism continued to provoke harassment, vandalism and assault. In 1993, according to B’nai B’rith, there were more “hate crimes” than in any year since records began in 1981, with Jews and African Canadians the most frequent victim groups. More indicative of Canadian reality were census data from 1981, 1986 and 1991 revealing that “visible minorities,” and especially African Canadians, had consistently lower-than-average incomes and higher levels of unemployment. Even when qualifications, experience and regional factors were considered, Canadians of African and Asian origin earned less than white Canadians in comparable circumstances. ... A national survey of 672 employment recruiters in 1987 reported that 87 percent of corporate recruiters and 100 percent of employment agencies received implicit requests to discriminate by “race” when selecting personnel; these requests were actually fulfilled by 73 percent of the corporate recruiters and 94 percent of the private agencies. A series of tests run by the Canadian Civil Liberties Association in the 1980’s and 1990’s into employment agencies showed a consistent 80 percent willing to “screen” applicants according to racial requests.... Racial discrimination was widely reported in housing as well, and in one 1986 test of apartment rentals in Toronto more than 40 percent of applications were denied on apparently racial grounds. Perhaps most insidious of all, studies by the Toronto Board of Education showed that black school children were streamed into “basic” courses at a rate more than double that for white children (1997: 339).

Walker’s conclusion, already painfully obvious to racial minorities and Critical Race theorists in Canada, was that “race” was still a significant factor in Canada that determined where racial minorities “could live, what they could study in school, [and] how they could earn their living ... [and] despite profound changes in the law, the ‘remedial’ phase in rights policy

beginning around 1980 had limited impact upon ‘race relations’ in Canada” (1997: 339). In addition to the data unearthed by Walker, there are numerous task force and royal commission reports and other studies related to the existence of racism in Canadian society.⁸

The leading legal authority on the existence of anti-Black racism in Canada is the 1993 case of *R. v. Parks* (84 C.C.C. [3d] 353 [Ont. C.A.]). In this case, the Ontario Court of Appeal held that the accused Black man, who was charged with the murder of a White victim, should be allowed to challenge jurors for racial prejudice because of the overwhelming evidence of anti-Black racism in Metropolitan Toronto and Canada. Justice Doherty relied on his own research into the existence of racism in Canadian society and found “an ever-growing body of studies and reports documenting the extent and intensity of racist beliefs in contemporary Canadian society, many deal[ing] with racism in general, others with racism directed at black persons” (*R. v. Parks* at 366). Additionally, the Commission on Systemic Racism in the Ontario Criminal Justice System was directed in 1992 to make “anti-Black racism” the focal point in its inquiry into systemic racism.

Like their American counterparts, historically, Blacks have been excluded from the profession of law in Canada. For example, the Royal Commission on the Donald Marshall Jr. Prosecution (1989) recognized this exclusion when it made Recommendation 20, addressing the issue of legal careers for visible minorities. The royal commission recommended that the government, the Nova Scotia Barristers’ Society and the Dalhousie Faculty of Law cooperate in the development of a program to identify, recruit and support qualified visible-minority students aspiring to legal careers. Prior to the Marshall Inquiry, there were only seven Black lawyers in the entire province of Nova Scotia, most of whom were not practising law, primarily because of the colour barrier they faced in the profession. The first native-born Black Nova Scotian to graduate from Dalhousie Law School was James Robinson Johnston in 1898, but the next, George Davis, did not graduate until fifty-four years later, in 1952. This lack of Black legal representation in Nova Scotia and Canada has seriously undermined the Black community’s ability to attack issues of racism in a legal framework and has retarded the advancement of rights doctrine in the context of race under the *Canadian Charter of Rights and Freedoms*.

Canadian law schools only began to address the education of substantial numbers of minority students in the late 1980s. Formal programs to ameliorate the conditions of groups disadvantaged because of race or colour only began to emerge in law schools at that time. The past failure to address the problem of student diversity has placed an enormous burden on the few minority faculty in Canadian law schools. As a result of

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this late start, the pool of minority candidates for faculty hiring is very small. Some Canadian law schools are attempting to address the issues of faculty and student diversity simultaneously, while others are still debating whether to address them at all. Most Canadian law schools have no First Nations people or persons of colour on their faculties (Aylward 1995: 470).

Those few Canadian scholars of colour, however, began writing about the impact of race and racism on Canadian law in the 1980s and the early 1990s. For example, in 1994, Professor Joanne St. Lewis wrote a critical piece on *Racism and the Judicial Decision-Making Process* in which she defined “racism” in the judicial context as

an attitude in the judicial decision-making process which assumes the inherent superiority of the values of the dominant cultural/racial group and the concomitant inferiority of another cultural/racial group. The issue of racism is fundamentally about power of the mass and the shared belief system; the power to shape reality in accordance with one’s values; the power to give voice to or to silence the diversity of others; the power to rewrite history and to develop legislation which meets the socioeconomic imperatives of the majority (1994: 15).

In 1994 another Canadian Critical Race theorist, Esmeralda Thornhill, noted that:

Our arsenal of legal devices is sorely in need of repair when it comes to Racism and racial discrimination. The Index to Canadian Legal Periodical Literature—the last time checked—still comported no category or heading labelled “Racism” or “Racial Discrimination,” thus from the outset, incontrovertibly, limiting the body of doctrine available to practitioners and to the Courts to help them assess Racism. We have no published collection of case commentaries assembling decisions involving incidents with racial overtones or [any] other similar published body of doctrine (1994: 8).

In 1993 the *Canadian Journal of Women and the Law* published a thematic volume entitled *Racism ... Talking Out*, the first of its kind in Canadian legal publication history.⁹ The editorial in this volume stated that, “despite the growing recognition of the centrality of race and racism to feminist analysis of law, there remains a dearth of such scholarship within legal feminism” (C.J.W.L. 1993: v). This was the first Canadian legal publication to respond to the call for inclusion by scholars of colour.

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The editorial also recognized a “profound imbalance” in legal publishing, in that “the voices of Women of Colour and Aboriginal women have not been heard. Empowering this group to speak out on issues of race and racism is a precondition to any serious effort to foster race-conscious feminist analyses of law” (C.J.W.L. 1993: v). Contributions to this volume on racism by Black, Aboriginal and other women of colour included critical race analyses addressing the following topics:

- A “general conspiracy of silence and denial [and] the prevalence of Racism in Canadian Legal Culture” (Thornhill 1994: 2).
- “Canadian [human rights] tribunals [which] largely ignore the racial and gender identity of both complainants and respondents” (Duclos 1993: 25).
- “Practices which focus on racism without addressing sexism [that] create a hierarchy of oppressions. Instead, what is required is a reframing of the issues so that racism and sexism are seen as interlinking oppressions which contribute to the invalidation of Islam and the marginalization of Muslims” (Khan 1993: 52).
- “Differential immigration policy [that reinforces] black nurses’ subordination within a racialized and gendered nursing labour force” (Calliste 1993: 85).
- “The lack of studies and statistics to support a systemic racial discrimination claim” (Carasco 1993: 142).
- “Under-representation of Aboriginal Peoples in the English common law tradition ... [and] the failure to address the representation of Aboriginal Peoples in the civil law tradition” (Monture-OKanee 1993: 121).

The “invisibility” of Canadian racism and its impact on the law is also illustrated in the work of most White Canadian feminist scholars. Examples of the deficiency of mainstream feminist analysis (of the substance and the procedure of criminal law) can readily be seen in the scholarship of mainstream feminists such as Boyle et al. (1991). I will illustrate this problem by using examples drawn from a “Forum on *Lavallee v. R.: Women and Self-Defence*” (1991), organized by Christine Boyle and others to provide a feminist critique of a 1990 Supreme Court of Canada decision where a woman was acquitted of second-degree murder with respect to the death of her common-law partner on the basis of self-defence. Various mainstream feminist writers suggest that, on the whole, this Supreme Court of Canada decision seemed to be in the best interest of women. The majority of the Court held that expert psychiatric evidence

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was admissible to assist the jury in understanding the battered woman syndrome, in order to determine the reasonableness of the accused woman's belief that killing her batterer was the only way to save her life. These feminist writers note that the Supreme Court of Canada decision changes the configuration of the self-defence doctrine and recognizes that legal doctrines (such as reasonableness) have been historically based on a male model and therefore may not meet the needs of women. They suggest that the adoption by the Supreme Court of Canada of a "reasonable battered woman" standard for self-defence is demonstration of "the Court's openness which may have benefits and costs for women" (Boyle et al. 1991: 23).

Critical Race theorists go further, however, and highlight the absence in mainstream feminist analyses of a recognition that the "reasonable person" standard was not only based on a male model but on a White male model. For this reason, it not only failed to meet the needs of White women, but it continues to ignore the realities of women and men of colour, since the *Lavallee v. R.* case ([1990] 1 S.C.R. 888 [S.C.C.]) did not address the issue of colour, even though Ms. Lavallee was a Metis woman.

Boyle et al. examined the implications of the *Lavallee* decision for other defences and concluded that "the non-narrow, contextual approach that is taken in *Lavallee* with respect to both the construction of reasonableness and the issue of the need for imminent danger opens the door to the dramatic reconstruction of other defences which may have disadvantaged women.... The *Lavallee* approach would apply to any defence, whenever reasonableness is in issue" (1991: 25–26). The authors then went on to examine other defences, such as provocation. In this context they concede that the issue of gender was not the only one relevant to women, and reasonableness and factors such as culture, race, age, class, religion and sexual orientation may also be relevant. The defence of provocation also has a "reasonableness" requirement, in that the provocation must be sufficient to deprive the ordinary person of self-control. Historically, in provocation, the legal concept of the ordinary or "reasonable" person was one of normal temperament and average mental capacity (read *White male*). However, in the British case of *R. v. Camplin* ([1978] 2 All E.R. 168 at 721 [H.L.]), Lord Morris held that "if the accused is of particular colour or particular ethnic origin and things are said which to him are grossly insulting, it would be utterly unreal if the jury had to consider whether the words would have provoked a man of different colour or ethnic origin—or to consider how such a man would have acted or reacted."

Mainstream feminists point out that in 1985, in the pre-*Lavallee* environment of *R. v. Hill* (51 C.R. [3d] 97 [S.C.C.]) the Supreme Court of Canada also held that other factors such as age and race, as well as gender,

may be relevant in determining what a reasonable person would do when provoked. They also note the fact that the majority in *Hill* did not make it a mandatory requirement that the trial judge in such cases explicitly tell the jury what attributes they should consider (Justice Dickson emphasized in *Hill* [at 116] that the jury, in applying their common sense to the factual determination of the objective test, would quite naturally and properly ascribe such characteristics to the “ordinary person”). Although mainstream feminists consider this aspect of *Hill* unfortunate because the admission of the expert evidence presented in *Lavallee* demonstrated how the so-called “common sense” of a jury may lead to an erroneous conclusion, they only explicitly discuss bias in relation to the risk that a decision-maker who is male, or who has internalized a male perspective on the world, would be unable to comprehend the issue of provocation from a female perspective. They do not consider the implications of a failure to explicitly instruct about issues of race. In other words, they never ask the question, What are the implications for a Black person who may be provoked by repeated racial slurs?

Important arguments can be made concerning racism and provocation. Peter Rosenthal (1989–90) argues that because of the psychological damage caused by racial harassment and racist propaganda, it is appropriate to use the criminal law to limit the harm it causes. A racial taunt, says Rosenthal, “has certain features that distinguish it from other kinds of insults. It attacks an aspect of the victim that she or he cannot change. Furthermore, this aspect encompasses the entire person as a human being and not only attacks the person directly, but also her family and social contacts, which give the victim no place to turn for solace (see Rosenthal 1989–90: 118).¹⁰

The mainstream feminist scholars who participated in the *Lavallee* symposium ignored the fact that it may be doubly difficult for any decision-maker who is White or has internalized a White perspective on the world to see the issue from a Black woman’s or man’s perspective. They fail to recognize this crucial racial element and do not discuss it anywhere in their analyses. This is only one example of how White feminist scholars generally fail to address the issue of the Black woman’s status in a racist society. In this case, mainstream feminists made no attempt to analyse the implications on women of colour of the defence of self-defence, the battered woman syndrome, or the defence of provocation.

How might *Lavallee* be adopted to take account of the relevance of race to the legal concept of reasonableness? I will give one example. In addition to the issues discussed above, the Court in *Lavallee* also concluded that an “imminent attack” is not necessary in all cases for self-defence to succeed. This finding is also relevant to provocation, because the requirement of “suddenness” in the defence of provocation is equiva-

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lent to the “imminent danger” requirement for self-defence. What implications does this have on the defence of provocation, where the provocation offered must have been such as to deprive the “ordinary” person of the power of self-control and the provocation must have been “sudden”? Critical Race theorists would argue that the cumulative impact of continual and prolonged racial harassment upon Black and other people of colour is similar to that of long-term spousal abuse upon women. If expert evidence can be introduced to provide a context for relief from the “immediacy” requirement in self-defence for battered women, should expert evidence be admitted to address the cumulative effect of months or years of abuse and prolonged racial harassment on Black women, men and other people of colour by society, with a view to reinterpreting the “suddenness” requirement with respect to provocation and racial insults?

As can be seen from this collection of work by scholars of colour, Canadian Critical Race theorists are seeking new approaches to deal with the complex relationships among race, racism and Canadian law. Because of the tendency in Canada to “erase” the history of racism, Canadian Critical Race theorists have a much more daunting task than their American counterparts in deconstructing the role racism plays in law.

Summary

The exclusion of Blacks and other people of colour from the Canadian legal academy has led to a serious under-representation of legal scholars of colour, which in turn has led to a slower development of Critical Race Theory in Canada. However, the historic pattern of exclusionary legal scholarship by White authors is being challenged by those few Critical Race scholars who have managed to challenge the existing status quo, bringing a new dawn of deconstruction of legal rules and reconstruction of principles and policies from a Critical Race perspective. As we shall see, the Critical Race Theory movement in Canada and the United States has the potential to have a profound effect on the way we see race, racism and the law.